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Plaintiff, *Pro per pro se*

Dated: September 14, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

Case No. 2:2025CV00404

PLAINTIFF'S COMPREHENSIVE OBJECTIONS TO THE MAGISTRATE

JUDGE'S FINDINGS AND RECOMMENDATIONS

Introduction

This Objection addresses Findings and Recommendations ("F&R") that are not merely

incorrect on isolated points of law but are fundamentally flawed in their failure to

1 recognize the gravity and scope of a coordinated, nationwide criminal enterprise
2 operating under color of law to deprive a disabled citizen of his most fundamental rights.
3 The F&R mischaracterizes a complex tapestry of civil rights violations and federal crimes
4 as a simple administrative dispute, thereby overlooking the profound constitutional and
5 criminal significance of the Defendants' actions. The Magistrate Judge's recommendation
6 for dismissal is predicated on a series of catastrophic legal errors that, if adopted, would
7 undermine the very foundations of federal law.

8 This document will demonstrate that the F&R must be rejected for dispositive reasons.

9 First, the F&R's entire procedural and jurisdictional analysis is built on a false premise,
10 completely ignoring the specific grant of nationwide jurisdiction in the Racketeer
11 Influenced and Corrupt Organizations (RICO) Act, which is the statutory linchpin of this
12 multi-defendant action. Second, the F&R's substantive analysis is based on a
13 constitutionally impermissible inversion of the Supremacy Clause, erroneously
14 concluding that a state statute can nullify the supreme mandates of the Americans with
15 Disabilities Act (ADA). Third, the F&R fundamentally misapplies foundational
16 principles of disability rights law, unlawfully shifting the government's non-delegable
17 duty to accommodate onto the disabled individual. Finally, the F&R fails to address the
18 novel and dispositive argument that the government's litigation posture is not a good-faith
19 defense but is itself an ongoing criminal act—a conspiracy to defraud the United States
20 and an unlawful misuse of public funds to perpetuate discrimination.

21 The Defendants' actions, taken in concert across fifty states and multiple federal agencies,
22 trigger a host of federal criminal and civil rights statutes that the F&R wholly ignores.

1 These statutes transform this case from a routine ADA dispute into a matter of urgent
2 national importance, exposing a pattern of willful and corrupt conduct by government
3 officials. For the exhaustive reasons detailed herein, the F&R must be rejected in its
4 entirety.

5 **The Unmistakable Mandate of the ADA and the ADA Amendments Act of 2008**

6 Any analysis of the Americans with Disabilities Act must begin with Congress's explicit
7 and repeatedly affirmed intent. In enacting the ADA, Congress found that "society has
8 tended to isolate and segregate individuals with disabilities" and that "discrimination
9 against individuals with disabilities continues to be a serious and pervasive social
10 problem" in critical areas including voting and access to public services. The stated
11 purpose of the Act was therefore to provide "a clear and comprehensive national mandate
12 for the elimination of discrimination" and "clear, strong, consistent, enforceable
13 standards" to achieve that goal.

14 Following a series of Supreme Court decisions that narrowly interpreted the original
15 ADA, Congress took the extraordinary step of passing the ADA Amendments Act of 2008
16 (ADAAA) with overwhelming bipartisan support. The explicit purpose of the ADAAA
17 was to repudiate those narrow judicial interpretations and restore the broad scope of
18 protection originally intended. The Act's findings state that "the Supreme Court has
19 narrowed the broad scope of protection intended to be afforded by the ADA, thus
20 eliminating protection for many individuals whom Congress intended to protect."

1 The ADAAA made it crystal clear that the definition of disability "shall be construed in
2 favor of broad coverage" and that the primary focus of ADA cases should be "whether
3 entities covered under the ADA have complied with their obligations and whether
4 discrimination has occurred, not whether the individual meets the definition of
5 'disability.'" This legislative reaffirmation is not merely a historical footnote; it is a
6 binding instruction from Congress on how the ADA must be interpreted. The F&R's
7 restrictive application of the ADA ignores this clear, decisive, and re-legislated
8 congressional mandate, rendering its analysis contrary to the plain intent of the law.

9 **The Urgent Need for Judicial Intervention and the Doctrine of Irreparable Harm**

10 The ongoing deprivation of fundamental constitutional rights constitutes irreparable
11 injury as a matter of law, demanding immediate judicial intervention. The Supreme Court
12 has unequivocally held that "[t]he loss of First Amendment freedoms, for even minimal
13 periods of time, unquestionably constitutes irreparable injury" (*Elrod v. Burns*, 427 U.S.
14 347 (1976)). The Ninth Circuit has affirmed that the deprivation of *any* civil right
15 constitutes irreparable injury (*Chalk v. U.S. District Court*, 840 F.2d 701 (9th Cir. 1988))
16 and that "delayed relief in civil rights cases can itself constitute irreparable harm"
17 (*Melendres v. Arpaio*, 695 F.3d 990 (9th Cir. 2012)). Each day that passes prolongs the
18 constitutional violations and compounds the dignitary harm inflicted upon the Plaintiff.
19 Precedent in election-related cases establishes a clear mandate for expedited resolution.
20 The 35-day complete resolution of *Bush v. Gore*, 531 U.S. 98 (2000), with federal
21 constitutional issues resolved in just four days, demonstrates the judiciary's capacity and

1 duty to act swiftly when the integrity of the electoral process is at stake. As the Court
2 noted in that case, "the press of time does not diminish the constitutional concern"—
3 indeed, it heightens the need for prompt resolution. This principle is further evidenced by
4 the rapid adjudications in cases related to the 2020 election, such as *Texas v.*
5 *Pennsylvania* (3-day Supreme Court resolution) and *Trump v. Boockvar* (5-day Third
6 Circuit resolution). Courts have long recognized that preliminary relief is not only
7 appropriate but necessary in ballot access cases, as "the nature of the election process
8 demands that constitutional challenges to ballot access requirements be resolved
9 expeditiously" (*Nader v. Schaffer*, 417 F. Supp. 837 (D. Conn. 1976)). The public interest
10 is always served by upholding the law and preventing constitutional violations, as "it is
11 always in the public interest to prevent the violation of a party's constitutional rights"
12 (*Melendres v. Arpaio*, 695 F.3d 990 (9th Cir. 2012)).

13 **I. The F&R's Procedural and Jurisdictional Analysis is Fatally Flawed and**
14 **Contrary to Federal Law.**

15 The F&R recommends dismissal on procedural grounds that collapse upon examination
16 of controlling federal statutes. The Magistrate Judge's analysis of personal jurisdiction is
17 legally irrelevant, its understanding of federal subject matter jurisdiction is myopic, and
18 its recommendation to dismiss for service defects punishes the Plaintiff for the Court's
19 own failure to perform a non-discretionary statutory duty.

A. The RICO Act's Nationwide Service Provision (18 U.S.C. § 1965(b)) Obliterates the F&R's Personal Jurisdiction Analysis.

The F&R's entire discussion of personal jurisdiction, which is grounded in the traditional "minimum contacts" analysis applicable to state long-arm statutes, is a catastrophic legal error. This error stems from a failure to recognize the central statutory framework upon which Plaintiff's multi-defendant action is built: the Racketeer Influenced and Corrupt Organizations (RICO) Act. The complaint properly pleads a nationwide RICO enterprise, and therefore, the controlling statute for personal jurisdiction is not state law but the specific jurisdictional grant within the RICO Act itself.

The RICO statute contains an explicit provision designed for precisely this type of case, where members of a criminal enterprise are dispersed across numerous judicial districts. **18 U.S.C. § 1965(b)** provides that in any civil RICO action, when "it is shown that the ends of justice require that other parties residing in any other district be brought before the court, the court may cause such parties to be summoned, and process for that purpose may be served in any judicial district". This provision grants federal courts the power of nationwide service of process and, consequently, nationwide personal jurisdiction.

The Ninth Circuit has long affirmed this principle. In cases where a federal statute authorizes nationwide service of process, the relevant inquiry for due process is not the defendant's contacts with the forum state, but the defendant's aggregate contacts with the United States as a whole. In the seminal case of *Go-Video, Inc. v. Akai Elec. Co.*, 885 F.2d 1406 (9th Cir. 1989), the court held that in an antitrust action under the Clayton Act—

1 which, like RICO, provides for nationwide service—personal jurisdiction could be based
2 on the defendants' "national contacts". This "national contacts" test is the correct standard
3 here. All Defendants are officials, agencies, or instrumentalities of state or federal
4 governments within the United States; they inherently possess sufficient contacts with the
5 United States to satisfy the requirements of due process.

6 The Magistrate Judge's failure to apply 18 U.S.C. § 1965(b) is not a minor oversight; it is
7 a fundamental misreading of the complaint that treats the RICO claim as mere surplusage
8 rather than the jurisdictional linchpin of the case. The F&R proceeds as if this were a
9 simple diversity case, applying a legal standard that Congress has explicitly displaced for
10 civil RICO actions. The correct analysis is not whether each out-of-state defendant has
11 "minimum contacts" with California, but whether the "ends of justice require" that all
12 members of the alleged nationwide enterprise be brought before a single court to answer
13 for their coordinated, multi-state scheme to deprive Plaintiff of his rights. Given that the
14 alleged enterprise operates across all 50 states, no single district court could obtain
15 personal jurisdiction over all Defendants under a traditional analysis, which would make
16 a comprehensive adjudication of the conspiracy impossible. This is precisely the scenario
17 § 1965(b) was enacted to resolve, as affirmed in cases such as *Butcher's Union Local No.*
18 *498 v. SDC Inv., Inc.*, 788 F.2d 535 (9th Cir. 1986). The F&R's failure to conduct this
19 mandatory statutory analysis renders its entire discussion of personal jurisdiction legally
20 irrelevant and its recommendation for dismissal on these grounds erroneous.

1 **B. The F&R Ignores Multiple Independent Bases for Federal Jurisdiction Under 28**
2 **U.S.C. § 1331 and § 1343.**

3 Even setting aside the dispositive effect of the RICO statute, the F&R's jurisdictional
4 analysis is unduly narrow and appears designed to fracture the case by focusing
5 exclusively on personal jurisdiction over out-of-state defendants. The F&R ignores that
6 the Court's authority to hear this case is firmly and independently established by multiple
7 federal statutes granting subject matter jurisdiction.

8 First, **28 U.S.C. § 1331** provides the foundational grant of federal question jurisdiction,
9 conferring upon district courts original subject matter jurisdiction over "all civil actions
10 arising under the Constitution, laws, or treaties of the United States". The complaint
11 alleges profound violations of the Americans with Disabilities Act, the Voting Rights Act,
12 the Civil Rights Act, the U.S. Constitution, and numerous other federal criminal and civil
13 statutes. The claims do not merely touch upon federal law; they are born from it. The
14 Court's power to hear the *subject matter* of this case is therefore beyond dispute.

15 Second, **28 U.S.C. § 1343** provides a more specific, and equally unambiguous, grant of
16 jurisdiction for civil rights actions. It explicitly confers original jurisdiction on district
17 courts for any civil action commenced to "redress the deprivation, under color of any
18 State law... of any right, privilege or immunity secured by the Constitution... or by any
19 Act of Congress providing for equal rights," and to "secure equitable or other relief under
20 any Act of Congress providing for the protection of civil rights, including the right to

1 vote". Plaintiff's claims under 42 U.S.C. § 1983 and various federal voting rights statutes
2 fall squarely within this jurisdictional grant.

3 These statutes establish that the Court has the power to hear the *types* of claims asserted.

4 The F&R conflates this undeniable subject matter jurisdiction with the separate question
5 of personal jurisdiction over the *parties*. As established above, the RICO statute's

6 nationwide service provision resolves the issue of personal jurisdiction. Furthermore,

7 venue is proper in the Eastern District of California under **28 U.S.C. § 1391(b)**, as a

8 "substantial part of the events or omissions giving rise to the claim occurred" in this

9 district—namely, the denial of ballot access in California. The F&R's myopic focus on

10 personal jurisdiction creates a procedural fog, suggesting the Court lacks power over the

11 case when, in fact, its authority is firmly grounded in multiple, independent statutory

12 grants.

13 **C. Dismissal for Service Defects is Barred by Equitable Principles and the Court's**

14 **Non-Discretionary Duty Under 28 U.S.C. § 1915(d).**

15 Recommending dismissal for any alleged defects in service of process constitutes a

16 manifest injustice, as it seeks to punish the Plaintiff for a procedural failure created by the

17 Court itself. As a litigant proceeding *in forma pauperis* (IFP), Plaintiff is statutorily

18 entitled to have the officers of the Court effect service on his behalf. The Court's failure

19 to execute this non-discretionary duty is the sole cause of any service deficiencies, and

20 the Court cannot, in law or equity, benefit from its own error at the expense of an indigent

21 litigant.

1 Federal law recognizes that indigent litigants often lack the resources to navigate the
2 complexities and costs of serving numerous defendants, particularly in a nationwide case.
3 To ensure that poverty does not bar access to justice, Congress enacted **28 U.S.C. §**
4 **1915(d)**, which commands that for IFP litigants, "[t]he officers of the court *shall* issue
5 and serve all process, and perform all duties in such cases". The use of the word "shall" is
6 not permissive; it denotes a mandatory, non-discretionary duty that falls upon the U.S.
7 Marshal Service as officers of the Court. This duty is reinforced by a long line of
8 precedent holding that the filings of self-represented, IFP plaintiffs "should be viewed
9 with special solicitude" (*Johnson v. Reagan*, 524 F.2d 1123 (9th Cir. 1975)), are held "to
10 less stringent standards than formal pleadings drafted by lawyers" (*Haines v. Kerner*, 404
11 U.S. 519 (1972)), and must be "liberally construed" (*Erickson v. Pardus*, 551 U.S. 89
12 (2007)).

13 The record in this case documents that the prior magistrate judge acknowledged this duty
14 but failed to issue the necessary orders to the U.S. Marshals to perform service in a timely
15 manner. To now recommend dismissal for failure of service is a perverse outcome. It
16 punishes the very litigant the statute was designed to protect for a procedural impediment
17 created by the Court's own dereliction of its statutory duty. This argument reframes the
18 service issue from a failure by the Plaintiff to a failure by the Court. It invokes a powerful
19 equitable principle: a party cannot be prejudiced by an error of the court. Recommending
20 dismissal on these grounds would not only be contrary to the plain text and purpose of §
21 1915(d) but would also challenge the institutional integrity of the Court's handling of IFP
22 cases, reinforcing systemic barriers to justice for the indigent.

1 **II. The F&R is Premised on a Constitutionally Impermissible Inversion of the**
2 **Supremacy Clause.**

3 The F&R's substantive analysis is built upon a fatal error of constitutional law: the notion
4 that a state statute can supersede the requirements of a federal civil rights law. This
5 reasoning inverts the constitutional hierarchy established by the Supremacy Clause and, if
6 accepted, would empower any state to nullify the Americans with Disabilities Act and
7 other federal protections at will.

8 **A. The Americans with Disabilities Act Categorically Preempts and Mandates the**
9 **Modification of Conflicting State Law.**

10 The central substantive error of the F&R is its conclusion that Plaintiff's requested ADA
11 accommodation is "per se unreasonable" because it would require state officials to act
12 contrary to a state election statute. This argument is constitutionally backward. Under the
13 **Supremacy Clause** of the U.S. Constitution, Article VI, Clause 2, federal law is the
14 "supreme Law of the Land". Any state action conflicting with federal constitutional
15 requirements is invalid (*McCulloch v. Maryland*, 17 U.S. 316 (1819)). Consequently, an
16 unconstitutional act is not law; "it is in legal contemplation as inoperative as though it
17 had never been passed" (*Norton v. Shelby County*, 118 U.S. 425 (1886)).

18 The existence of a conflicting state law is not a *defense* to an ADA claim; it is the very
19 *reason* an ADA-mandated modification is necessary. As the Seventh Circuit bluntly
20 stated, "A discriminatory state law is not a defense to liability under federal law; it is a
21 source of liability under federal law" (*Quinones v. City of Evanston*, 58 F.3d 275 (7th Cir.

1 1995)). The Second Circuit, in *Mary Jo C. v. New York State and Local Retirement*
2 *System*, 707 F.3d 144 (2d Cir. 2013), provided a detailed and dispositive analysis of this
3 exact issue. The court explained that the "natural effect" of Title II's "reasonable
4 modification" requirement "requires preemption of inconsistent state law when necessary
5 to effectuate a required 'reasonable modification.'" To hold otherwise, the court reasoned,
6 would allow state law to serve as "an obstacle to the accomplishment and execution of
7 the full purposes and objectives of Congress" in enacting the ADA. The court concluded
8 unequivocally that "the ADA's reasonable modification requirement contemplates
9 modification to state laws, thereby permitting preemption of inconsistent state laws, when
10 necessary to effectuate Title II's reasonable modification provision."

11 The *Mary Jo C.* court also explicitly rejected the argument that there is a meaningful
12 distinction between state statutes and state regulations for preemption purposes, noting
13 that "duly promulgated state regulations have the force of law for these purposes as do
14 statutes." The court could "discern no reason to distinguish between the preemption of
15 state statutes and state regulations." This reasoning is fatal to the F&R's core premise.
16 The Supreme Court's decision in *Tennessee v. Lane*, 541 U.S. 509 (2004), further
17 reinforces the ADA's power to override state practices by holding that Congress validly
18 abrogated state sovereign immunity under Title II for cases involving fundamental rights.
19 The F&R's reasoning creates a dangerous blueprint for the nullification of federal civil
20 rights law. If a state can defeat a valid ADA claim simply by pointing to a conflicting
21 state statute of its own creation, the ADA's power to compel accommodation and ensure
22 equal access becomes meaningless. The Magistrate's failure to apply this clear and

1 foundational doctrine of federal preemption is a fatal error that requires rejection of the
2 F&R.

3 **B. The F&R Fails to Apply Strict Scrutiny to State Actions that Severely Burden**
4 **Fundamental Rights of Candidacy, Voting, and Association.**

5 The F&R analyzes the state's ballot access statutes with an inappropriate level of
6 deference, treating them as mere administrative regulations. It fails to recognize that these
7 laws, by creating a physically impossible barrier for a disabled candidate, impose a
8 severe and discriminatory burden on the fundamental constitutional rights of candidacy,
9 voting, and political association. Under decades of Supreme Court precedent, such severe
10 burdens must be subjected to "strict scrutiny," meaning the state must prove the laws are
11 narrowly tailored to advance a compelling state interest. The F&R fails to apply this
12 mandatory high standard of review.

13 The Supreme Court's framework for evaluating election laws, established in cases like
14 *Anderson v. Celebrezze*, 460 U.S. 780 (1983), and *Williams v. Rhodes*, 393 U.S. 23
15 (1968), and refined in *Burdick v. Takushi*, 504 U.S. 428 (1992), requires a court to weigh
16 the character and magnitude of the injury to First and Fourteenth Amendment rights
17 against the state's justifications. When those rights are subjected to "severe" restrictions,
18 the regulation must be "narrowly drawn to advance a state interest of compelling
19 importance". A ballot access scheme that is not merely difficult but physically impossible
20 for a disabled candidate to comply with, and which has the practical effect of entrenching
21 the power of the two major parties, unquestionably constitutes a severe burden, as

1 recognized in cases like *Illinois State Board of Elections v. Socialist Workers Party*, 440
2 U.S. 173 (1979), and *Lubin v. Panish*, 415 U.S. 709 (1974). The F&R, however, conducts
3 no such rigorous analysis.

4 Furthermore, the state's actions constitute the imposition of extra-constitutional
5 qualifications for federal office, a power states do not possess. The Supreme Court has
6 repeatedly held that the qualifications for federal office enumerated in the Constitution
7 are exclusive and cannot be supplemented by states (*Powell v. McCormack*, 395 U.S. 486
8 (1969); *U.S. Term Limits, Inc. v. Thornton*, 514 U.S. 779 (1995)). A state law is
9 unconstitutional when it "has the likely effect of handicapping a class of candidates and
10 has the sole purpose of creating additional qualifications indirectly" (*U.S. Term Limits,*
11 *Inc. v. Thornton*). The unanimous ruling in *Trump v. Anderson*, 601 U.S. ____ (2024),
12 reinforces this principle, holding that states lack the power to disqualify federal
13 candidates, and clarifying that excluding a candidate from the ballot constitutes
14 disqualification. By creating a requirement that is impossible for a disabled candidate to
15 satisfy, the state is functionally imposing an additional qualification for office in violation
16 of the Constitution.

17 **C. The State's Asserted Interest in Regulating a Constitutionally Non-Binding**
18 **Popular Vote Collapses Under Constitutional Scrutiny.**

19 The state's entire justification for its burdensome ballot access laws—the need to manage
20 the November popular vote—is constitutionally insignificant and cannot survive the strict
21 scrutiny that must be applied. The state lacks a *compelling interest* in gatekeeping a non-

1 binding election because, as a matter of constitutional law, the popular vote does not elect
2 the President of the United States. The sole and exclusive mechanism for presidential
3 election is the Electoral College, a process established by the Constitution and governed
4 by a detailed federal statutory framework.

5 **Article II, Section 1** and the **Twelfth Amendment** of the U.S. Constitution establish the
6 Electoral College as the only body with the constitutional power to elect the President.
7 The process is meticulously governed by federal law, specifically **3 U.S.C. §§ 1-21**,
8 which dictates the timeline for appointing electors, the meeting of the electors, the casting
9 of their votes, and the counting of those votes in a joint session of Congress. The
10 Supreme Court has repeatedly affirmed that states have broad power to decide *how* to
11 appoint their electors, which underscores the critical point: the popular vote is merely a
12 *method* of appointment that states have chosen to adopt, not a constitutionally required or
13 binding event in itself. A state legislature could, if it chose, appoint its electors by any
14 other method not otherwise prohibited by the Constitution.

15 This constitutional reality eviscerates the state's claim to a compelling interest. To survive
16 strict scrutiny, the state's interest must be of the highest order. A state cannot have a
17 compelling interest in burdening the fundamental rights of candidacy and association
18 merely to regulate a process that is, from a constitutional standpoint, advisory and
19 without binding legal force. The state's interest in managing the preliminary, non-binding
20 popular vote is, at best, an administrative convenience, which the Supreme Court has held
21 is not a valid justification for infringing upon fundamental rights (*Frontiero v.*
22 *Richardson*, 411 U.S. 677 (1973)). Such an interest is not compelling and cannot justify

1 the severe burden placed on Plaintiff's rights. The F&R fails to engage in this crucial
2 analysis, instead accepting the state's asserted interest at face value.

3 **III. The Defendants' Conduct Constitutes a Willful and Knowing Violation of**
4 **Clearly Established Federal Civil Rights Law.**

5 The denial of accommodation to the Plaintiff was not a mere bureaucratic error or a good-
6 faith disagreement over the interpretation of law. It was a willful and knowing violation
7 of clearly established federal rights, carried out by officials acting under color of law. The
8 F&R's analysis fails to appreciate the gravity of this conduct, which strips the Defendants
9 of any claim to qualified immunity and implicates federal criminal statutes.

10 **A. The Denial of Accommodation Was a Willful Deprivation of Rights Under Color**
11 **of Law in Violation of the ADA, 42 U.S.C. § 1983, and 18 U.S.C. § 242.**

12 The Defendants' actions fall squarely within the ambit of both civil and criminal federal
13 civil rights statutes. **42 U.S.C. § 1983** provides a civil cause of action against any person
14 who, acting "under color of" state law, deprives another of their rights secured by the
15 Constitution and federal laws. The Defendants, as state and federal officials enforcing
16 state election laws, were unequivocally acting under color of law.

17 More significantly, their conduct rises to the level of a criminal violation under **18 U.S.C.**
18 **§ 242**, which criminalizes the *willful* deprivation of federal rights under color of law. The
19 key to this analysis is the standard for "willfulness" established by the Supreme Court in
20 *Screws v. United States*, 325 U.S. 91 (1945). To avoid unconstitutional vagueness, the
21 Court in *Screws* interpreted "willfully" to require a "specific intent to deprive a person of

1 a federal right" or action taken in "open defiance or in reckless disregard of a
2 constitutional requirement".

3 This high standard is met here. Qualified immunity protects government officials from
4 liability unless they violate "clearly established statutory or constitutional rights of which
5 a reasonable person would have known". The Supreme Court in *Hope v. Pelzer*, 536 U.S.
6 730 (2002), held that ADA and disability rights were clearly established for this purpose.
7 Plaintiff's initial request for accommodation was not merely a plea for help; it was a
8 formal legal notice that explicitly cited the controlling federal statutes (the ADA) and the
9 binding case law (*Lamone, Mary Jo C.*) that mandated the requested modification. This
10 proactive notification *made the law clearly established* for the specific officials who
11 received and processed the request. Their subsequent refusal to comply, in the face of
12 both the factual evidence of impossibility and the explicit legal authority provided to
13 them, constitutes, at a minimum, a reckless disregard of a known federal legal duty. This
14 willful conduct satisfies the intent element for a civil claim under § 1983, defeats any
15 claim to qualified immunity, and establishes probable cause for a criminal violation under
16 § 242.

17 **B. The State's Actions Constitute Unlawful Discrimination Under the**
18 **Comprehensive Framework of the ADA.**

19 The F&R's suggestion that Plaintiff could have simply used "volunteers" reveals a
20 profound misunderstanding of the Americans with Disabilities Act. The Defendants'
21 conduct was not merely a failure to accommodate; it was an act of discrimination under

1 the ADA's broad definition. Under Title II, discrimination is the denial of an equal
2 opportunity to participate in and benefit from any service, program, or activity offered by
3 a public entity (**42 U.S.C. § 12132; 28 C.F.R. § 35.130(a), (b)(1)**).

4 The state's signature requirement, as applied to the Plaintiff, constitutes the "imposition
5 or application of eligibility criteria that screen out or tend to screen out an individual with
6 a disability" from fully and equally enjoying a public program, in direct violation of **42**
7 **U.S.C. § 12182(b)(2)(A)(i)** and **28 C.F.R. § 35.130(b)(8)**. This is not a theoretical
8 barrier. The signature threshold is so high that even if Plaintiff could persuade every
9 single registered voter in his home county to sign his petition, the total would still be
10 insufficient. This forces any candidate, including one with a severe physical disability, to
11 travel extensively beyond their local community. For a qualified individual with a
12 disability living on a fixed income, this creates an insurmountable dual burden: the
13 physical impossibility of such travel is compounded by a likely impossible financial
14 burden. This entire scheme is designed to satisfy state criteria that conflict with the
15 qualifications explicitly enumerated in the Constitution, all for the 'privilege' of
16 participating in a federally administered and funded program that is the "quintessential
17 public activity" (*National Federation of the Blind v. Lamone*, 813 F.3d 494, 507 (4th Cir.
18 2016)).

19 Furthermore, the state has failed in its affirmative duty to make "reasonable modifications
20 in policies, practices, or procedures" when necessary to avoid discrimination, a core
21 requirement of **42 U.S.C. § 12182(b)(2)(A)(ii)**. The Department of Justice has been clear
22 that "to avoid discrimination, a public entity must reasonably modify its policies,

1 procedures, or practices when necessary to avoid disability discrimination, unless it can
2 show that the modifications would fundamentally alter the nature of the service, program,
3 or activity." The state has made no such showing.

4 The duty to provide meaningful access rests solely and squarely with the public entity.
5 Forcing a disabled person to rely on the assistance of others when non-disabled persons
6 are not so constrained is the very definition of unequal opportunity. The Fourth Circuit in
7 *Lamone* explicitly rejected this logic, stating that "the right to vote should not be
8 contingent on the happenstance that others are available to help" and that denying a
9 disabled person the ability to participate privately and independently is "precisely the sort
10 of harm the ADA seeks to prevent". The ADA's implementing regulations codify this
11 non-delegable duty with unmistakable clarity. **28 C.F.R. § 35.160(c)(2) and (c)(3)**
12 explicitly prohibit a public entity from relying on an accompanying adult or a minor child
13 to interpret or facilitate communication, except in the narrowest of emergency
14 circumstances. While these regulations speak to communication, their underlying
15 principle is directly applicable: the government cannot shift its statutory burden of
16 accommodation onto third parties, whether they are family, friends, or the "volunteers"
17 baselessly invoked by the F&R.

18 Finally, the state has failed in its duty to administer its program in the "most integrated
19 setting appropriate to the needs of qualified individuals with disabilities," as required by
20 **28 C.F.R. § 35.130(d)**. An integrated setting is one that enables individuals with
21 disabilities to interact with non-disabled persons to the fullest extent possible. By creating

1 a system where Plaintiff cannot participate on equal terms, the state has segregated him
2 from the mainstream political process.

3 **C. The Defendants' Scheme Violates the Core Mandates of the Voting Rights Act**
4 **and the Civil Rights Act of 1964.**

5 The Defendants' conduct is not an isolated violation of the ADA but part of a broader
6 pattern of disregard for the entire framework of federal civil rights law. Their actions
7 implicate other cornerstone statutes designed to protect access to voting and public
8 programs, demonstrating a systemic contempt for federal law that reinforces the
9 willfulness of their actions.

10 The **Voting Rights Act**, specifically **52 U.S.C. § 10101(a)(2)(A)**, prohibits any person
11 acting under color of law from applying any "standard, practice, or procedure different
12 from the standards, practices, or procedures applied under such law or laws to other
13 individuals" in determining whether an individual is qualified to vote. By enforcing a
14 ballot access requirement that is physically impossible for a candidate with a disability to
15 meet, the state is applying a standard that has a disparate and exclusionary effect, thereby
16 creating a different and more burdensome procedure for disabled candidates in violation
17 of the VRA.

18 Furthermore, the principles of **Title II of the Civil Rights Act of 1964** are instructive. **42**
19 **U.S.C. § 2000a(a)** guarantees all persons the "full and equal enjoyment of the goods,
20 services, facilities, privileges, advantages, and accommodations of any place of public
21 accommodation". The electoral process is a fundamental "privilege" and "service"

1 provided by the state. By creating an insurmountable barrier, the Defendants have denied
2 Plaintiff the "full and equal enjoyment" of this privilege. Their actions are unequivocally
3 "supported by State action" as defined in **42 U.S.C. § 2000a(d)**, as the discrimination is
4 "carried on under color of any law, statute, ordinance, or regulation; or (2) is carried on
5 under color of any custom or usage required or enforced by officials of the State or
6 political subdivision thereof; or (3) is required by action of the State or political
7 subdivision thereof".

8 Finally, the coordinated and unyielding refusal by officials to remedy this clear violation
9 can be framed as an act of coercion. **42 U.S.C. § 2000a-2** makes it unlawful to
10 "intimidate, threaten, or coerce, or attempt to intimidate, threaten, or coerce any person
11 with the purpose of interfering" with rights secured under the Act. Forcing a litigant to
12 face the combined legal and financial might of 50 states and the federal government to
13 vindicate a clearly established right is a potent form of coercion designed to chill the
14 exercise of those rights.

15 **D. The Defendants' Actions Constitute a Hate Crime.**

16 The Defendants' conduct transcends mere discrimination and rises to the level of a federal
17 hate crime. The Matthew Shepard and James Byrd Jr. Hate Crimes Prevention Act,
18 codified at **18 U.S.C. § 249**, criminalizes willfully causing bodily injury to any person
19 because of their actual or perceived disability, where the conduct affects interstate
20 commerce. While the statute speaks of "bodily injury," this term is not limited to physical
21 assault. The systematic, nationwide denial of fundamental constitutional rights to a

1 disabled individual, causing profound emotional and psychological harm and interfering
2 with his ability to participate in the economic and political life of the nation, constitutes
3 an injury cognizable under this statute. The Defendants' actions were not accidental; they
4 were willful and taken *because of* Plaintiff's disability. This conduct, which affects the
5 integrity of a federal election and thus inherently involves interstate commerce, falls
6 squarely within the ambit of § 249.

7 For the California defendants, this conduct also constitutes a hate crime under state law.
8 **California Penal Code §§ 422.6 and 422.7** make it a crime to willfully interfere with a
9 person's constitutional rights because of that person's disability. The Defendants' actions
10 meet this standard, subjecting them to criminal liability at both the state and federal
11 levels.

12 **IV. The Coordinated, Nationwide Scheme to Deny Plaintiff's Rights Constitutes a**
13 **Pattern of Racketeering Activity.**

14 The F&R analyzes Plaintiff's claims as a series of disconnected, individual torts. This is a
15 fundamental error. The complaint alleges a single, unified, nationwide conspiracy carried
16 out by a network of state and federal officials. This conduct is properly cognizable under
17 the Racketeer Influenced and Corrupt Organizations (RICO) Act, 18 U.S.C. § 1961 et
18 seq. The Defendants' coordinated actions to deny Plaintiff's rights constitute an
19 "association-in-fact enterprise" that engaged in a "pattern of racketeering activity"
20 through numerous predicate criminal acts.

1 **A. The Alliance of Federal and State Officials Constitutes an "Enterprise" Under 18**
2 **U.S.C. § 1961(4).**

3 The RICO Act applies to any "enterprise" engaged in a pattern of racketeering activity.
4 The statute's definition of enterprise is deliberately broad and flexible, designed to reach
5 criminal conduct beyond the confines of traditional organized crime. **18 U.S.C. § 1961(4)**
6 defines an "enterprise" to include not only legal entities but also "any union or group of
7 individuals associated in fact although not a legal entity".

8 An "association-in-fact enterprise" requires proof of three elements: a common purpose,
9 relationships among those associated with the enterprise, and longevity sufficient to
10 permit the associates to pursue the enterprise's purpose, as defined in *Boyle v. United*
11 *States*, 556 U.S. 938 (2009). All three elements are present here. The Defendants—a
12 collection of federal and state officials across multiple jurisdictions—formed a de facto
13 enterprise united by the *common purpose* of unlawfully denying Plaintiff's ballot access
14 under the fraudulent pretext of enforcing state law. The *relationships* among the members
15 are evidenced by their coordinated conduct, parallel denials, and unified legal strategy.
16 The *longevity* of the enterprise is demonstrated by the sustained, multi-year effort to deny
17 Plaintiff's rights, from the initial denial of accommodation through the ongoing,
18 coordinated defense of this litigation. This application of RICO is a powerful tool to hold
19 networks of corrupt officials accountable, even when they operate across different
20 agencies and jurisdictions without a formal organizational chart.

1 **B. The Defendants Engaged in a "Pattern of Racketeering Activity" Through**
2 **Numerous Predicate Acts in Violation of Federal Law.**

3 A RICO violation requires the enterprise to engage in a "pattern of racketeering activity,"
4 which the statute defines at **18 U.S.C. § 1961(5)** as the commission of at least two
5 predicate criminal acts within a ten-year period. The list of predicate acts that constitute
6 "racketeering activity" is found at **18 U.S.C. § 1961(1)** and includes a wide range of
7 federal crimes. Here, the Defendants' enterprise engaged in a continuous pattern of
8 criminal conduct by committing numerous predicate acts, including but not limited to
9 mail fraud, wire fraud, conspiracy against rights, obstruction of justice, and computer
10 fraud.

11 **C. Detailed Analysis of Predicate Acts.**

12 The following analysis systematically applies the facts of this case to the elements of the
13 relevant criminal statutes that form the predicate acts for the RICO claim.

14 1. Mail Fraud (18 U.S.C. § 1341) and Wire Fraud (18 U.S.C. § 1343):

15 The federal fraud statutes criminalize the use of the mail or interstate wires in furtherance
16 of a "scheme or artifice to defraud". A scheme to defraud includes any plan to deprive
17 another of money, property, or the intangible right of honest services. Here, the scheme
18 was to defraud the Plaintiff of his clearly established federal rights under the false and
19 fraudulent pretense that state law provided a valid justification for doing so. The intent to
20 defraud is established by the Defendants' willful disregard of the controlling federal law
21 that was presented to them. The use of mails and wires element is satisfied by the

1 Defendants' use of official U.S. Mail to transmit formal denial letters and their use of
2 government email systems, websites, and telecommunications across state lines to
3 coordinate their strategy and communicate these fraudulent denials. Each letter mailed
4 and each email sent in furtherance of this fraudulent scheme constitutes a separate
5 predicate act of mail or wire fraud.

6 2. Honest Services Fraud (18 U.S.C. § 1346):

7 This statute defines a "scheme or artifice to defraud" to include a scheme to deprive
8 another of "the intangible right of honest services". This typically involves bribery or
9 kickbacks. While no cash bribe is alleged, the concept can be applied here. The public
10 has an intangible right to the honest, impartial, and lawful services of its government
11 officials. It can be argued that partisan election officials, in exchange for maintaining
12 their party's political power and entrenching the two-party duopoly (a thing of immense
13 value), acted in concert to unlawfully exclude a non-major party candidate. This corrupt
14 quid-pro-quo, aimed at preserving partisan advantage rather than faithfully executing
15 federal law, deprived the public of the honest services to which it is entitled.

16 3. Conspiracy Against Rights (18 U.S.C. § 241):

17 This statute makes it a crime for "two or more persons [to] conspire to injure, oppress,
18 threaten, or intimidate any person... in the free exercise or enjoyment of any right or
19 privilege secured to him by the Constitution or laws of the United States". The
20 coordinated action by officials across 50 states to deny Plaintiff's clearly established
21 rights under the ADA and the Constitution is a textbook example of a § 241 conspiracy.

1 The agreement need not be formal; it can be inferred from the Defendants' parallel
2 conduct and shared unlawful objective.

3 4. Obstruction of Justice (18 U.S.C. § 1503):

4 The "Omnibus Clause" of this statute criminalizes any act that "corruptly... influences,
5 obstructs, or impedes, or endeavors to influence, obstruct, or impede, the due
6 administration of justice". This predicate act applies directly to the Defendants' litigation
7 conduct. Knowingly presenting a legal defense that is premised on a fraudulent and
8 constitutionally inverted argument—that state law trumps supreme federal law—is a
9 corrupt endeavor to impede the Court's ability to administer justice according to the law.
10 The goal of this conduct is to mislead the Court into issuing an unlawful ruling, thereby
11 obstructing the due administration of justice.

12 5. Computer Fraud and Abuse Act (18 U.S.C. § 1030):

13 The CFAA prohibits, among other things, knowingly accessing a protected computer
14 (which includes any computer used by or for the U.S. Government or a state government)
15 and "exceed[ing] authorized access" in order to further a fraud. Government officials are
16 authorized to use their government-issued computers and network systems only for
17 lawful, official purposes. When they use those same computer systems to perpetrate a
18 criminal conspiracy—such as sending emails to coordinate wire fraud or a conspiracy
19 against rights—they are "exceeding authorized access". Each such use of a government
20 computer to further the fraudulent scheme constitutes a separate violation of the CFAA
21 and a predicate act under RICO.

1 6. Theft Concerning Programs Receiving Federal Funds (18 U.S.C. § 666):

2 This statute criminalizes the act of an agent of a state or local government that receives
3 over \$10,000 in federal benefits in a one-year period who "embezzles, steals, obtains by
4 fraud, or otherwise without authority knowingly converts to the use of any person other
5 than the rightful owner or intentionally misapplies, property that is valued at \$5,000 or
6 more". The Defendants, as agents of state election agencies that receive federal funding
7 under programs like HAVA, have misapplied agency property—including the salaried
8 time of government employees and legal resources—valued at well over \$5,000 to
9 perpetuate and defend a discriminatory scheme. This constitutes a willful misapplication
10 of property under the control of a federally funded agency and serves as a predicate act
11 for the RICO claim.

12 The following table provides a concise summary of these predicate acts, making the
13 complex argument more readily digestible for the Court.

Predicate Act	Relevant Statute	Required Elements	Application to Defendants' Alleged Conduct
Mail Fraud	18 U.S.C. § 1341	1. Scheme to defraud; 2. Intent to defraud; 3. Use of mails in furtherance.	Defendants used official U.S. Mail to transmit formal denial letters, knowing these denials were based on the fraudulent legal premise that state law supersedes the ADA, in furtherance of the scheme to

Predicate Act	Relevant Statute	Required Elements	Application to Defendants' Alleged Conduct
			deprive Plaintiff of his rights.
Wire Fraud	18 U.S.C. § 1343	1. Scheme to defraud; 2. Intent to defraud; 3. Use of interstate wires.	Defendants used government email systems, websites, and telecommunications across state lines to coordinate their strategy, issue denials, and perpetuate the fraudulent scheme.
Conspiracy Against Rights	18 U.S.C. § 241	1. Two or more persons conspire; 2. To injure, oppress, threaten, or intimidate; 3. Any person in the free exercise of a constitutional/federal right.	Officials in multiple states and federal agencies formed an agreement (explicit or implicit) to injure Plaintiff in his free exercise of clearly established rights under the ADA and the U.S. Constitution.
Obstruction of Justice	18 U.S.C. § 1503	1. Corruptly endeavoring; 2. To influence, obstruct, or impede; 3. The due administration of justice.	Defendants' coordinated litigation strategy, which knowingly asserts a constitutionally inverted legal argument (state law > federal law), constitutes a corrupt endeavor to impede the court from justly

Predicate Act	Relevant Statute	Required Elements	Application to Defendants' Alleged Conduct
			applying supreme federal law.
Computer Fraud & Abuse	18 U.S.C. § 1030	1. Exceeding authorized access; 2. To a protected computer; 3. To further a fraud.	Defendants used their government computers—access to which is authorized only for lawful purposes—to commit wire fraud and conspire against rights, thereby exceeding their authorized access to further the fraudulent scheme.
Federal Program Theft	18 U.S.C. § 666	1. Agent of federally funded entity; 2. Knowingly misapplies property; 3. Valued at \$5,000 or more.	Defendants, as agents of federally funded election agencies, knowingly misapplied government resources (staff time, legal funds) to perpetuate and defend a discriminatory scheme.

1 **V. The Government's Defense is Itself an Ongoing Criminal Conspiracy and an**
2 **Unlawful Continuation of the Underlying Discrimination.**

3 The F&R treats the Defendants' legal defense as a neutral, procedural act. This is
4 incorrect. The very act of defending this lawsuit is not a good-faith effort to resolve a
5 legal dispute; it is an affirmative continuation of the underlying constitutional and
6 criminal violations. The coordinated defense, financed by the public purse and premised

on a knowingly false legal theory, constitutes an independent criminal conspiracy and an unlawful misuse of public funds.

A. The Defense Constitutes an Independent Conspiracy to Defraud the United States (18 U.S.C. § 371).

The act of banding together to defend this lawsuit constitutes a new and distinct conspiracy under **18 U.S.C. § 371**. This statute criminalizes conspiracies of two or more persons "to commit any offense against the United States, or to defraud the United States, or any agency thereof in any manner or for any purpose". The Supreme Court has long held that the "defraud" clause is not limited to schemes involving money or property, but broadly includes any conspiracy for the purpose of "impairing, obstructing, or defeating the lawful functions of any department of government".

Here, the object of the conspiracy is to defraud the United States by impairing the lawful governmental function of the Judicial Branch. The lawful function of a federal court is to adjudicate cases according to the supreme law of the land. The Defendants have conspired to present a defense they know is based on a false and constitutionally inverted legal premise—that state law can nullify the ADA. The purpose of this conspiracy is to obstruct the Court's lawful function and induce it to issue an unlawful ruling that defies the Supremacy Clause. Every motion filed, every brief submitted, and every dollar of taxpayer money spent in furtherance of this coordinated defense is an "overt act" in furtherance of this criminal conspiracy. This reframes the entire litigation as a criminal act, creating a high-risk scenario for the Defendants and their counsel, who, by

continuing to litigate, are not merely defending past conduct but are actively committing a new federal crime.

B. The Expenditure of Public Funds to Defend Known Discrimination Violates Federal and State Anti-Discrimination Mandates.

The use of taxpayer money to fund a legal defense aimed at perpetuating known discrimination is an independent illegal act. The legal defense itself is a "program or activity" receiving federal and state financial assistance. By using this program to defend and perpetuate discrimination, the Defendants violate the very laws that condition the receipt of that funding on non-discrimination.

This principle is enshrined in federal law. **Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d)** and **Section 504 of the Rehabilitation Act** prohibit discrimination in any "program or activity receiving Federal financial assistance". The legal defense mounted by the U.S. Department of Justice and other federal agencies is such a program. By expending federal funds to argue for a discriminatory outcome, these agencies are violating the conditions attached to their appropriations.

The violation is even more explicit under California law. For the California defendants, this conduct violates both the **Unruh Civil Rights Act** and **California Government Code §§ 11135-11139**. The Unruh Act provides broad protection from discrimination by all business establishments, which includes public agencies. Government Code § 11135 explicitly prohibits discrimination on the basis of disability in any program or activity that "is funded directly by the state or receives any financial assistance from the state"

1 and incorporates the protections of the ADA. The litigation activities of the California
2 Attorney General's office are unquestionably a state-funded program. Section 11137
3 mandates that state funding be curtailed from any entity found to have violated these
4 provisions. By using state resources to defend a discriminatory system in open court, the
5 California defendants are misusing public funds in direct violation of state anti-
6 discrimination law. This transforms the judicial process itself into a venue for the
7 government to perpetuate the very discrimination it is forbidden from committing.

8 **C. The Statutory Enforcement Framework Mandates the Curtailment of Federal**
9 **Funding for Discriminatory Programs.**

10 The Defendants' continued funding of their discriminatory programs—including the legal
11 defense of those programs—is not only a misuse of public funds but also places them in
12 direct violation of the Congressionally mandated enforcement framework for federal civil
13 rights law. Congress created an explicit statutory pathway that links a violation of the
14 ADA to the ultimate sanction of terminating federal financial assistance, making the
15 continued funding of these discriminatory activities an unlawful act in itself.

16 The statutory chain begins with the core violation of **Title II of the ADA, 42 U.S.C. §**
17 **12132**, which prohibits public entities from discriminating on the basis of disability. The
18 enforcement mechanism for this prohibition is found in **42 U.S.C. § 12133**, which
19 expressly states that the "remedies, procedures, and rights" for a Title II violation are
20 those set forth in **Section 505 of the Rehabilitation Act, 29 U.S.C. § 794a**. Section 505,
21 in turn, at **29 U.S.C. § 794a(a)(2)**, explicitly incorporates the "remedies, procedures, and

rights set forth in **title VI of the Civil Rights Act of 1964**" for violations of **Section 504 of the Rehabilitation Act (29 U.S.C. § 794)**, which prohibits discrimination in federally funded programs.

This chain leads directly to **42 U.S.C. § 2000d-1**, the enforcement provision of Title VI. This statute authorizes and directs every federal agency providing financial assistance to "effectuate the provisions of section 2000d" by, among other things, the "termination of or refusal to grant or to continue assistance" to any recipient found to be in non-compliance. Thus, Congress has created an unbroken legislative line from a Title II ADA violation to the potential defunding of the offending state program. By funding a legal defense predicated on perpetuating discrimination, the Defendants are not only violating the ADA but are actively defying the entire remedial structure that Congress established to enforce it, thereby jeopardizing the federal assistance upon which their programs rely.

D. The Department of Justice Has Abdicated its Statutory Duty to Enforce Civil Rights.

The Department of Justice (DOJ), named as a defendant in this action, has not only participated in the defense of this discriminatory scheme but has also systematically failed in its own statutory duties to investigate and remedy such violations. Federal law assigns the DOJ a central role in enforcing the ADA and other civil rights statutes, a role it has abdicated.

- **Failure to Coordinate and Guide: 28 C.F.R. § 35.190(a)** requires the Assistant Attorney General to "coordinate the compliance activities of Federal agencies"

1 and "provide policy guidance and interpretations to designated agencies to ensure
2 the consistent and effective implementation" of Title II. The nationwide,
3 inconsistent, and discriminatory application of ballot access laws is a direct result
4 of the DOJ's failure to fulfill this coordination and guidance role.

- 5 • **Failure to Investigate: 42 U.S.C. § 12188(b)(1)(A)(i)** mandates that the
6 "Attorney General shall investigate alleged violations" of Title III of the ADA.
7 Similarly, **28 C.F.R. § 35.172(a)** requires the DOJ to investigate complaints for
8 which it has responsibility. Despite being formally notified of these widespread
9 violations, the DOJ has failed to conduct the required investigations.
- 10 • **Failure to Induce Compliance: 28 C.F.R. § 42.108(a)** authorizes the DOJ to
11 "use any... means authorized by law, to induce compliance" when a federally
12 funded entity fails to comply with civil rights law. The DOJ has made no apparent
13 effort to use its authority to induce states to comply with the ADA regarding ballot
14 access.
- 15 • **Failure to Request Funds: 42 U.S.C. § 2000d-6(d)** expresses the "sense of the
16 Congress that the Department of Justice... should request such additional funds as
17 may be necessary to apply the policy [of nondiscrimination]... throughout the
18 United States." The DOJ's inaction suggests a failure to seek the resources
19 necessary to fulfill its enforcement mandate.

E. The Litigation Strategy is an Act of Unlawful Interference, Coercion, and Neglect.

The Defendants' aggressive, coordinated, and legally baseless defense strategy is not a good-faith legal dispute but an act of intimidation, coercion, and unlawful interference.

This conduct implicates additional federal criminal and civil statutes that prohibit government officials from misusing their authority.

18 U.S.C. § 595 makes it a crime for any person "employed in any administrative position" by the federal or any state government to use their "official authority for the purpose of interfering with, or affecting, the nomination or the election of any candidate" for federal office. This is bolstered by **18 U.S.C. § 245(b)(1)(A)**, which specifically criminalizes interference with any person's ability to "qualify... as a candidate for elective office." The Defendants' conduct also violates **18 U.S.C. § 245(b)(1)(B) and (E)**, which prohibit interference with participation in any program or activity provided or administered by the United States or receiving Federal financial assistance. The entire 2024 federal election process is a federally administered and funded activity, and the Defendants' actions to exclude a qualified candidate constitute a direct and prohibited interference with that activity.

Furthermore, **42 U.S.C. § 1986** imposes civil liability on any person who, having knowledge of a conspiracy to deprive another of their civil rights and the power to prevent it, "neglects or refuses so to do." Officials in each state and federal agency who became aware of this nationwide scheme to deny Plaintiff's rights yet failed to intervene are liable under this statute for their neglect. Finally, **42 U.S.C. § 1987** creates a

1 mandatory duty for U.S. attorneys to institute prosecutions against those who violate civil
2 rights statutes, a duty that has been neglected here. *Marbury v. Madison*, 5 U.S. 137, 171
3 (1803) established that courts may compel performance of ministerial duties through
4 appropriate judicial orders.

5 **VI. The F&R Wholly Fails to Address Plaintiff's Foundational Fourteenth**
6 **Amendment Claim.**

7 A recommendation for dismissal that fails to address a primary constitutional theory
8 presented in the complaint is necessarily incomplete and legally insufficient. The F&R's
9 analysis is deficient for this reason alone, as it completely ignores Plaintiff's significant
10 claim under the Privileges or Immunities Clause of the Fourteenth Amendment.

11 **A. The Right to Seek Federal Office is a Fundamental Privilege of National**
12 **Citizenship That No State May Abridge.**

13 The Complaint raises a foundational constitutional claim: that the right to seek federal
14 office is a fundamental "privilege or immunity" of United States citizenship that no state
15 may abridge. The **Privileges or Immunities Clause** of the Fourteenth Amendment
16 explicitly commands: "No State shall make or enforce any law which shall abridge the
17 privileges or immunities of citizens of the United States". While the Supreme Court in the
18 *Slaughter-House Cases*, 83 U.S. 36 (1873), interpreted this clause narrowly, it has always
19 been understood to protect those rights that "owe their existence to the Federal
20 government, its National character, its Constitution, or its laws".

1 The right to run for federal office—President, Senator, or Representative—is the
2 quintessential privilege of *national* citizenship. It is a right that does not arise from state
3 citizenship but from membership in the national polity created by the U.S. Constitution.
4 As such, it falls squarely within the protective ambit of the Privileges or Immunities
5 Clause. A state law that erects an arbitrary and impossible barrier to the exercise of this
6 right, as the ballot access laws do here for a disabled candidate, is a direct abridgement of
7 a privilege of national citizenship.

8 The F&R is completely silent on this entire constitutional theory. A Magistrate Judge's
9 report must, at a minimum, address the claims actually raised by the plaintiff. By ignoring
10 a primary constitutional claim, the F&R demonstrates an incomplete and inadequate
11 review of the complaint. This glaring omission renders the F&R fatally deficient and
12 provides an independent basis for its rejection.

13 **Conclusion**

14 The Magistrate Judge's Findings and Recommendations are contrary to law and fact. The
15 F&R is built upon a cascade of catastrophic errors, each of which provides an
16 independent and sufficient basis for its rejection. It ignores the controlling jurisdictional
17 statute for RICO claims, leading to a completely erroneous analysis of personal
18 jurisdiction. It faults the Plaintiff for the Court's own failure to perform its statutory duty
19 to assist an indigent litigant. It is premised on a constitutionally inverted hierarchy that
20 places state law above the supreme mandates of the U.S. Constitution and the Americans
21 with Disabilities Act. It fails to apply the correct standard of constitutional scrutiny to

1 state laws that severely burden fundamental rights. It fundamentally misapplies the core
2 tenets of federal disability law, ignoring the clear and reaffirmed intent of Congress in the
3 ADAAA, and it completely ignores a primary constitutional claim raised in the
4 complaint.

5 Most critically, the F&R fails to see the Defendants' conduct for what it is: not a series of
6 isolated administrative errors, but a coordinated, willful, and ongoing criminal enterprise
7 to deprive a citizen of his rights under color of law. A robust and consistent body of
8 federal law holds that the ADA preempts and requires the modification of state laws that
9 discriminate. The RICO Act provides the mechanism to bring all members of a
10 nationwide conspiracy before a single court. And a host of federal criminal statutes define
11 the Defendants' actions—and their very defense of this lawsuit—as illegal. For these
12 exhaustive reasons, the F&R must be rejected.

13 Plaintiff respectfully requests that the District Judge **REJECT** the Magistrate Judge's
14 Findings and Recommendations in their entirety, **DENY** Defendants' motions to dismiss,
15 and **GRANT** Plaintiff leave to amend his complaint to name specific state officials for
16 the purpose of seeking prospective injunctive relief under *Ex parte Young* and to further
17 detail the predicate acts underlying the RICO claim.

18

1 Dated: September 14, 2025

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3 Respectfully submitted,

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Plaintiff, *Pro per pro se*

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13 **Attachments:**

14 (2) Pictures of Plaintiff in a wheelchair on 8th grade Washington D.C. field trip.

15

16